



U.S. Department
of Transportation

Research and
Special Programs
Administration

APR 30 1999

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10923
(THIRD REVISION)

EXPIRATION DATE: March 31, 2001

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: The Boeing Company
Military Aircraft and Missiles Systems Group
Seattle, Washington
2. PURPOSE AND LIMITATION: To authorize the transportation in commerce of reconditioned refrigeration units under the provisions of § 173.306(e), which provides certain exceptions for transporting new (unused) refrigeration units. The refrigeration units may not contain more than 150 pounds of Freon 22. This exemption provides no relief from any regulation other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.306(e).
5. BASIS: This exemption is based on an application from The Boeing Defense and Military Aircraft and missiles Systems Group dated February 11, 1999, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description/proper shipping name	Hazard Class (Written Class/Class or Division number)	Identification number	Packing Group
Refrigerating machines, containing non-flammable, non-toxic, liquefied gas	Division 2.2	UN2857	----

APR 30 1999

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - The refrigeration units are trailer-mounted and are approximately 17 feet long x 8.5 wide x 9 ft. high. Each unit weighs approximately 16,788 pounds and may not contain more than 150 pounds of Freon 22.
- b. TESTING - Each unit must be pressure tested to at least 297 psig prior to shipment.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.
- b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.
- c. MARKING - The outside of each package must be plainly and durably marked "DOT-E 10923."

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law 49 U.S.C. 5101 et seq.:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee" as defined in § 171.8 who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by § 172.700 through

APR 30 1999

Continuation of DOT-E 10923 (3rd Rev.)

Page 3

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

for Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

4/30/99
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590
Attention: DHM-31.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, SW, Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA
PO: sln